



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

**Department of State
Contracting Activity**

☒ Office of Acquisitions Management

Requiring Activity

OBO/PDCS/PDC/AF

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to solicit and award on a sole-source basis" a Firm-Fixed-Price (FFP) contract to Morphosis Architects, for the supplies and/or services described in Section 3 on behalf of the Requiring Activity.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The Agency requires Design Services to revise the Advanced Planning Final Report and cost estimates delivered by Morphosis Architects in June 2023 under Task Order 19AQMM22F4081 based on new scope and budget inputs from the Agency.

Services needed include:

1. Meetings and workshops
2. Constructability and Phasing Logistics Study
3. Revised Concepts
4. Preliminary Cost Estimate
5. Advanced Planning Final Report Update
6. Integrated Design Review (IDR)
7. OBO Senior Management Presentation Update

The estimated value for the entire period of performance is \$300,000.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following:

☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.



SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

The requiring office has urgency to acquire an A/E on an expedited timeframe to provide the needed services before the Department's budget submission in March/April 2025. Morphosis Architects has unique qualifications and specialized capabilities and expertise that is not prevalent in the marketplace.

Morphosis was the A/E on the initial phase of the project. They have expertise of the effort for services and products needed in this acquisition from their experience on the prior task order.

By being involved in the validation of the project from its inception, Morphosis also gained expertise of the site constraints, existing conditions, post staffing and operations, technical requirements, and how to incorporate these in design concepts. To perform professional due diligence, another A/E in the marketplace would need to re-survey the site, re-interview post, and re-validate technical assumptions to have an equivalent understanding of the project requirements as Morphosis. The amount of time a marketplace A/E would need to gain the expertise to perform the needed services would delay the A/E commencement of the deliverables and may result in a duplication of fees/use of taxpayer dollars for requirements and deliverables already performed by Morphosis.

Morphosis' intimate knowledge of the Gaborone Chancery and Compound Rehab project from their prior task order makes them the only source capable of providing the services and products needed by the requiring office before the Department's budget submission in March/April 2025.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

OBO/PDCS/PDC does not recommend open-source solicitation for these services because since circumstances preclude competition. The requirement will be synopsisized as required by FAR 6.302-I(d)(2) and statements of capability considered before determining whether to proceed to award on a sole source basis.

The requiring office has a short time frame for commencement of the A/E services to fully support the Department's budget submission in March/April 2025. This sole source award will benefit the Government and facilitate schedule and budget objectives. Morphosis Architects has unique qualifications and superior knowledge of the project program and requirements, site features and constraints, and design criteria from the services they performed under the prior task order.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contractor's cost proposal will be evaluated against an Independent Government Estimate (IGE) to determine if it is fair and reasonable value to the Government.



SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

Market research was not conducted in support of this request due to the urgent and compelling nature of the need.

SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

The basis of the sole source justification is due to this being a follow-on acquisition as implemented in FAR 6.302-1(a)(2)(ii). The original contract award was competed.

Failure to limit sources would seriously injure the Government because competition would cause unacceptable delays to delivery of the services and products needed and will likely cause duplication of deliverables and fees. The estimated length of the delay is a minimum of 6 months. This estimate is derived from actual timeframes for services and products in the prior task order that another source would need to duplicate to meet the needs of the requiring office and includes additional acquisition time. This would injure the Government because the services and products would not be available before the March/April 2025 Department budget submission. The risk is that the estimated cost of the concept the OBO project team can recommend exceeds the budget submission.

The prior acquisition was awarded in FY23 for approximately \$600,000. The estimated cost to the Government that would be duplicated and not recovered by not limiting competition is \$350,000 to \$400,000 based on the initial set-up costs, site survey trip costs, effort to perform due diligence, and effort to incorporate the project requirements into alternative concepts compared to the requested source. This estimate was derived by subtracting the estimated value of this acquisition from the amount of the prior task order. This sole source award will benefit the Government and facilitate national security objectives.

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

Market research was not conducted in support of this request due to the fact Morphosis is the AE of record and is the only responsible source.

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

None.



SECTION 12. CERTIFICATIONS

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

SIGNATURE:

Scott Phillips
Office: OBO/PDCS/PDC/AF

11/20/2024

Date

CERTIFICATIONS (Continued)

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:

Samantha Pakuwal
Contracting Officer
Office: A/GA/AM/DMS/FAC/AFD

11/21/2024

Date

SIGNATURE:

Jillian Savage
Division Director
Office: A/GA/AM/DMS/FAC/AFD